

	AREA	TOR	Terms of Reference
	POLICY	005	Finance Committee
	OWNERS	Finance Committee	
	AFFECTS	Finance Committee, Board of Directors	

TOR-005 | Finance Committee

PREAMBLE, SCOPE, & MANDATE

1. The Finance Committee shall have oversight of the financial planning and budget activities of the UTSU, including but not limited to the short-term and long-term financial planning of the UTSU. The Committee shall be empowered to review and make suggestions to the annual budget. .

MEMBERSHIP

2. The Membership of the Finance Committee is as follows:
 - a. Vice-President, Finance and Operations (Chair and Speaker)
 - b. President
 - c. A minimum of three (3) and a maximum of seven (7) directors in accordance with Article 8, Section 2 of the UTSU Bylaws.
 - d. The Financial Controller and General Manager / CAO shall serve as non-voting members.

DUTIES & RESPONSIBILITIES

3. The Finance Committee is responsible for preparing and recommending the operating and revised budgets for approval to the Board of Directors.
4. The Finance Committee may evaluate and make recommendations on financial decisions in excess of \$100,000 (capital expense) not included in board-approved budgets, including but not limited to investments, real estate, and renovations.
5. The Chair shall be responsible for creating the agenda on the advice of Committee members, and uploading it to the shared drive after meetings. The Chair shall be responsible for ensuring minutes are uploaded to the shared drive.

DELIVERABLES

6. The committee shall ensure the following deliverable requirements are met in service to its mandate each year:
 - a. Recommend and review operating and revised budgets for approval to the Board of Directors
 - b. Review other financial statements as needed

- c. Review financial decisions in excess of \$100,000.00 not included in board-approved budgets, as outlined in #4.

MEETING & DECISION-MAKING PROCEDURES

- 7. The Finance Committee shall be struck by the incoming Board at their first meeting in May of each year.
- 8. The Finance Committee shall meet as needed beginning no later than July and ending in April of each year.
- 9. The Finance Committee shall meet in open session unless determined otherwise by the committee or the Bylaws and Policies.
- 10. Votes shall be won by a simple majority (50% + 1) of members present and voting, unless otherwise indicated in board policies or UTSU Bylaws.
- 11. In serious and time-sensitive financial situations, the Chair may call a Special Finance Committee Meeting with a minimum of 24 hours notice and sending of the meeting package.
- 12. Personnel and visitors may be invited to Finance Committee meetings at the request of members by and at the discretion of the chair. These personnel and visitors shall have speaking rights, but shall only be invited for the purpose of presenting information about agenda items which would otherwise not be heard.
- 13. Members shall have three (3) speaking turns limited to three (3) minutes for each item.
- 14. Members shall be granted additional time or times as needed for items, if required, at the discretion of the Speaker. Members shall strive to present items concisely and clearly.
 - a. The speaker is recommended to do so if the discussion is productive and relevant to the topic at hand or by a vote of the majority of committee members present.
- 15. Executive Assistants (EAs) may be present at Finance Committee meetings for the purpose of minute-taking.
- 16. Agendas and minutes from each meeting shall be uploaded by the chair to the shared board drive.

FIDUCIARY SCOPE

- 17. The application of this committee's fiduciary obligations includes, but is not limited to:
 - a. Duty of care: Thoroughly reviewing budgets and large expenditures
 - b. Duty of prudence: Managing assets responsibly and stress-testing financial plans
 - c. Duty to disclose: Providing clear timely reports and financial statements to the board of directors

DELEGATION OF DELIVERABLES

- 18. If the committee fails to meet quorum for 2 consecutive meetings, the responsibility for completing the assigned deliverables shall be delegated to Management Committee, until such time that the committee can be reconvened.

